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Case Number: 26STLC00624 Hearing Date: July 20, 2026 Dept: 26

TENTATIVE RULING:

Defendant Timothy D. McGonigle, a Professional Corporation's Motion to Strike Portions of Plaintiff's Complaint is denied as to the first cause of action for open book account (paragraph 12 and prayer for relief), and granted as to the second and third causes of action for account stated and reasonable value (paragraphs 15, 18), respectively, without leave to amend.

Analysis:

On January 29, 2026, Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") filed this action for open book account, account stated, and reasonable value against Defendant Timothy D. McGonigle, a Professional Corporation ("Defendant"). Defendant filed the instant Motion to Strike Portions of Plaintiff's Complaint on April 15, 2026. Plaintiff filed an opposition on July 7, 2026 and Defendant replied on July 10, 2026.

Discussion

The instant motion to strike is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 435.5. (Motion, McGonigle Decl., ¶¶3-5 and Exh. A.) Defendant moves to strike the requests for attorney's fees set forth at paragraphs 12, 15, 18, and in the Prayer for Relief of the Complaint as unsupported by sufficient factual allegations. (Citing Code Civ. Proc., §§ 435, 436, subd. (a) and (b).) Attorney's fees are only recoverable when authorized by contract, statute, or law. (Code Civ. Proc., §§ 10221, 1033.5, subd. (a)(10).)

The Complaint alleges the following basis for the attorney's fees: "The DEBT sued upon herein was incurred on or after January 1, 1987 and is subject to the provisions of the California Civil Code Section 1717.5 and that Plaintiff is entitled to be awarded attorney's fees pursuant to said section." (Compl., ¶¶12, 15, 18.) Civil Code section 1717.5 applies to "any action on a contract based on a book account, as defined in Section 337a of the Code of Civil Procedure." (Code Civ. Proc., § 1717.5, subd. (a).) Defendant argues that beyond the conclusory allegation that the debt sued upon in this action is subject to Civil Code section 1717.5, no facts are alleged to show that the action involves a contract based on a book account as defined in Code of Civil Procedure section 337a. Code of Civil Procedure section 337a defines what constitutes a book account, namely, a detailed statement of one or more transactions between a debtor and a creditor that shows the debits and credits in connection with their relationship, entered in the regular course of business, and in a reasonably permanent form. (Code Civ. Proc., § 337a, subd. (a).)

The Motion, however, does not provide legal authority regarding what factual allegations are required to include a request for attorney's fees in the Complaint. The Motion refers to *Tillson v. Peters* (1940) 41 Cal.App.2d 671, 678–680, which sets forth the elements needed to prove a book account but is not a pleadings case. It is telling that Defendant's reply contends that "[a] statutory fee request must be supported by the pleaded facts, not merely by a conclusory reference to the statute," but cites no authority for this rule. (Reply, p. 4:12-14.) The first cause of action is for open book account, such that it provides for an award of attorney's fees under Civil Code section 1717.5, as alleged.

The second and third causes of action, however, have no relationship to Civil Code section 1717.5, as the statutory language makes clear. Nor does the Complaint include any other allegations that would demonstrate an entitlement to attorney's fees for causes of action for account stated and reasonable value, whether under Civil Code section 1717.5 or any other legal basis.

Based on the foregoing, Defendant has not demonstrated that the request for attorney's fees in the Complaint should be stricken with respect to the first cause of action for open book account for lack of sufficient pleading. However, it has demonstrated the impropriety of the attorney's fees request in the second and third causes of action, which

Plaintiff's opposition does not overcome. The opposition does not address the second and third causes of action. The Court also declines to grant Plaintiff leave to amend the Complaint. Plaintiff bears the burden to demonstrate that leave to amend should be granted, which must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The opposition does not demonstrate that facts exist to allow for attorney's fees for account stated and reasonable value.

Conclusion

Defendant Timothy D. McGonigle, a Professional Corporation's Motion to Strike Portions of Plaintiff's Complaint is denied as to the first cause of action for open book account (paragraph 12 and prayer for relief), and granted as to the second and third causes of action for account stated and reasonable value (paragraphs 15, 18), respectively, without leave to amend.

Moving party to give notice.